



January 22nd 2019 Delaware County Council Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=yT7HAY-105o
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Delaware County Council Meeting Summary

Meeting Date: January 2019 (Reorganization Meeting)

Body: Delaware County Council

1. Pre-Hearing & Committee Work Sessions

(No statutory public hearing or separate committee work session was held immediately prior to calling the regular meeting to order. Omitted per guidelines.)

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer Ron Quackenbush called to order the first Delaware County Council meeting of 2019, noted as the organization meeting [00:00:08](#).
- **Attendance:**
 - **Members Present:** Scott Alexander, Mr. Fowler, Ms. Chambers, Ms. Lassiter, Ms. Piper, Mr. Quackenbush, Mr. Bledsoe, and John Qualls (Vocal). *(Note: Roll call structure and attendance lists reflect active board participation throughout the transcript.)*
 - **Presiding Officer:** Ron Quackenbush (President).

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting began with organizational matters and roll call.
 - **Approval of Minutes:**
 - Minutes for the December 11 meeting and the December 26 special meeting were presented [00:03:16](#).
 - **Action & Vote Disposition:** Approved by Voice Vote (with Ms. Lassiter abstaining on specific segments due to absence or prior review status) [00:03:26](#).
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4. Substantive Business & Board Action

- [00:00:54](#) **Election of Council President**
 - **Sponsor / Presenter:** Council Floor.
 - **Deliberation Summary:** Nomination of Ron Quackenbush for Council President.
 - **Action & Vote Disposition:** Passed Unanimously (Roll call vote: Fowler - yes, Bledsoe - yes, Chambers - yes, Lassiter - yes, Piper - yes, Alexander - yes, Quackenbush - yes) [00:01:16](#).
- [00:01:41](#) **Election of Council Vice President**
 - **Sponsor / Presenter:** Council Floor.
 - **Deliberation Summary:** Nomination of Scott Alexander for Vice President.
 - **Action & Vote Disposition:** Passed Unanimously (Roll call vote conducted) [00:01:47](#).
- [00:05:00](#) **Financial & Registration Line-Item Transfers & Adjustments**
 - **Sponsor / Presenter:** Finance Committee / Department Heads.
 - **Deliberation Summary:** Routine adjustments and salary line-item corrections across various departments (including Human Resources, Coroner, Circuit Court, Emergency Medical Services, Public Defender, Communication Center, Jail, Sheriff, Prosecutor, Pre-Trial Diversion, and Surveyor/Cornerstone Perpetuation). Discussion focused on ensuring new hires match official salary policies, accounting for longevity pay lines separately so longevity follows employees regardless of demotions or promotions [00:14:58](#), and tracking fee-based fund expenditures.
 - **Action & Vote Disposition:** Approved by Voice Vote / Favorable Recommendation from Finance Committee across individual departmental motions [00:05:44, etc.].
- [00:24:38](#) **EDIT (Economic Development Income Tax) Annual Bill Payments**
 - **Sponsor / Presenter:** Finance / Auditor.
 - **Deliberation Summary:** Approval of annual EDIT project bills and claims totaling approximately \$3,000,000 [00:24:38](#). Explanation provided that the council shifted procedure from annual approval to paying claims collectively as required by the financing structure.

- **Action & Vote Disposition:** Approved by Voice Vote [00:24:50](#).
- **00:31:41 Highway Department GPS Contract Approvals**
 - **Sponsor / Presenter:** Highway Department.
 - **Deliberation Summary:** Request for a 3-year contract to install GPS tracking systems in all highway trucks and commercial vehicles (\$2,400 for bridges, \$9,600 for highway) [00:31:41](#). Department explained this improves safety, enables tracking of vehicle locations when radio contact fails, and resolves public complaints regarding property damage (e.g., mailboxes) [00:33:00](#).
 - **Action & Vote Disposition:** Approved by Voice Vote [00:34:25](#).
- **00:34:40 GIS Fund Budget & Aerial Photography**
 - **Sponsor / Presenter:** GIS Department.
 - **Deliberation Summary:** Total request of \$90,700 for GIS fund [00:35:00](#), including funding for new aerial photography flown every other year and staff training at the ESRI conference [00:35:30](#). Funded in part by contributions from 10 different county departments that utilize the aerial imagery [00:36:18](#).
 - **Action & Vote Disposition:** Approved by Voice Vote [00:36:34](#).
- **00:36:57 Unsafe Building Fund Transfers & Demolition Update**
 - **Sponsor / Presenter:** Building Commissioner / Steve Minich.
 - **Deliberation Summary:** Transfer of funds to cover unsafe building recording fees and demolition plans for targeted properties, noting an adjustment to balance available funds (\$29,693) [00:38:25](#).
 - **Action & Vote Disposition:** Approved by Voice Vote [00:38:46](#).
- **00:48:46 Tax Abatement Applications: Indiana Ticket Company & Muncie Novelty Company**
 - **Sponsor / Presenter:** Economic Development / Company Representatives (Hilda Sayer, Jill Caspar, David Broyles, John Martin) [00:49:11](#).
 - **Deliberation Summary:** Presentation of two tax abatement applications for businesses located at 9610 North State Road 67, Albany, Indiana [00:49:58](#):
 1. *Indiana Ticket Company:* Requesting an 8-year abatement for new digital production presses and paper-cutting equipment totaling roughly \$15,870 in total abatement, generating \$8,120 in new revenue to the county [00:52:08](#), creating 1 new job and retaining 48 jobs [00:51:00](#).
 2. *Muncie Novelty Company:* Requesting abatement for bander and stitcher equipment totaling \$2,119,431 [00:53:05](#), creating 1 new job and retaining 83 existing jobs [00:53:35](#). Both applications received favorable recommendations from the Tax Abatement Committee following site tours [00:49:28](#).
 - **Action & Vote Disposition:** Resolutions approving tax abatements passed unanimously via roll call vote [00:59:04](#).
- **01:01:02 Year-End Encumbrances**
 - **Sponsor / Presenter:** Auditor / Office Holders.

- **Deliberation Summary:** Approval of 2018 outstanding encumbrances to be paid out of prior year budgets (totaling \$4,383,398.18, including \$1.3 million in bridge encumbrances and \$725,000 in county general) [01:01:53](#).
 - **Action & Vote Disposition:** Approved by Voice Vote [01:03:20](#).
- [01:04:37](#) **Ordinances 2019-04, 2019-05, and 2019-06: Jail Build-Operate-Transfer (BOT) Lease & Financing**
 - **Sponsor / Presenter:** John Brooke (Attorney for Commissioners), Matt Ackerly (Umbaugh Municipal Advisor), Mark Herron & Doug Mons (Ameresco), Pete Peterson & Eric Webb (RQAW / BW Construction), County Commissioners, and Council Attorney Mr. Hughes [01:06:10, 01:11:51, 01:23:41, 02:11:43].
 - **Deliberation Summary:** Extensive presentation and debate regarding the proposed Build-Operate-Transfer (BOT) agreement and lease financing for a new Delaware County Jail and Justice Center facility (total raw construction cost estimated at \$42.1 million, total project cost roughly \$46 million including capitalized interest and soft costs) [01:35:55](#).
 - Ameresco reported on estimated utility costs for the new facility (\$415,000) [01:17:55](#).
 - Umbaugh Advisor Matt Ackerly presented two financing scenarios using EDIT revenues as the primary repayment source (with no new income tax rate increases):
 - **Scenario 1 (Ordinance 2019-05):** 22-year lease term (2-year construction + 20 years payment) with a backup property tax pledge, yielding an indicative interest rate of 3.9% and leaving approximately \$1.2 million in annual EDIT cash flow for other county priorities after debt service [01:31:00, 01:33:10].
 - **Scenario 2 (Ordinance 2019-04):** 20-year lease term (18 years of payments) without a property tax backup, yielding a 3.9% interest rate and leaving approximately \$940,000 in annual EDIT cash flow [01:31:00, 01:33:30].
 - Council members raised concerns regarding excess square footage in the existing building structure, future operating liabilities, space allocations for Community Corrections, and the removal of the swimming pool from current construction phases [01:59:13, 02:04:35, 02:12:20].
 - **Action & Vote Disposition:**
 - **Ordinance 2019-06** (Determination to enter into BOT lease agreement): Introduced on first reading by motion of Larry Chambers, seconded by Mr. Piper. Approved for introduction by voice/roll call vote [02:39:56](#).
 - **Ordinance 2019-04** (EDIT financing without property tax backup): Introduced on first reading by motion of Larry Chambers, seconded by Jessica. Approved for introduction [02:43:08](#).

- **Ordinance 2019-05** (EDIT financing with property tax backup): Introduced on first reading by motion of Larry Chambers, seconded by Jessica. Approved for introduction [02:43:50](#). *(Final passage scheduled for the February meeting)*.

5. Open Public Comment / Citizen Forum

- [02:28:31](#) **Mitch [Last Name Not Given]** (Resident): Addressed the council regarding the separation of powers, urging the council to delay voting until a proper public hearing and evening public meetings could be held to engage residents on the jail project [02:28:43](#).
- [02:35:03](#) **Pastor Jonathan Mitchell** (Curve Lake Church of God / Industry Neighborhood Association): Spoke on community concerns regarding the downtown jail relocation, property values, and the need for broader public dialogue [02:35:33](#). *(Note: Brief heated exchanges occurred between members of the public and council members regarding community statements and clergy outreach)*.
- [03:11:05](#) **Jodi [Last Name Not Given]** (Interpreted statement): Addressed the council regarding the difficulties of public advocacy and expressed community frustration regarding feeling unheard on major local government decisions [03:12:52](#).

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Emily [Umbaugh/Court representative] presented an upcoming preliminary update on a proposed Family Recovery Court planning phase and coordinator position for juvenile court, projected to save County General funds [03:20:03](#).
 - Notice that formal final readings and votes on Jail BOT ordinances will occur at the February meeting.
- **Adjournment:** The meeting concluded following agenda discussions and closing remarks [03:26:18](#). *(Exact adjournment time not explicitly spoken on record)*.